

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #05	CCRB Case #: 201709329	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 10/05/2017 1:13 PM	Location of Incident: East 60th Street and 3rd Avenue	18 Mo. SOL 4/5/2019	Precinct: 19
Date/Time CV Reported Wed, 11/08/2017 4:15 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 11/08/2017 4:15 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Markanthon Adames	07517	956370	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Markanthon Adames	Discourtesy: Police Officer Mark Anthony Adames spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On November 8, 2017, § 87(2)(b) filed this complaint via the CCRB website.

On October 5, 2017, at approximately 1:13 PM, § 87(2)(b) was driving alone on East 60th Street in Manhattan when his vehicle began to experience engine trouble. At the intersection of East 60th Street and 3rd Avenue, § 87(2)(b) made a right turn against a steady red arrow to remove his faulty vehicle from a congested area. Shortly after making the turn, § 87(2)(b) was pulled over by Police Officer Mark Anthony Adames of the 19th Precinct. During the course of their interaction, PO Adames allegedly told § 87(2)(b) “Shut the fuck up. Stay in the car” (**Allegation A, Discourtesy: Unsubstantiated**).

There is no video footage of the incident.

Findings and Recommendations

Allegation A- Discourtesy: Police Officer Mark Anthony Adames spoke discourteously to

§ 87(2)(b)

It is undisputed that § 87(2)(b) made a right hand turn against a steady red arrow. It is undisputed that § 87(2)(b) was pulled over by PO Adames immediately following the traffic violation. It is undisputed that during the course of their interaction § 87(2)(b) informed PO Adames that he had made the illegal turn due to issues with the vehicle’s engine. § 87(2)(g)

§ 87(2)(b)’s testimony (Board Review 1) was as follows. § 87(2)(b)’s vehicle was turning on and off intermittently. § 87(2)(b) was in the center lane of three lanes on East 60th Street. § 87(2)(b) had the green light to continue straight through the intersection; however, given the engine troubles, § 87(2)(b) made a right turn onto 3rd Avenue. The far right turn lane had a steady red arrow. After making the right turn, § 87(2)(b) was pulled over by PO Adames. PO Adames approached § 87(2)(b)’s vehicle and inquired if he knew why he had been pulled over. § 87(2)(b) responded that he was having engine issues. PO Adames requested § 87(2)(b)’s license and registration. § 87(2)(b) complied and provided his information. § 87(2)(b) requested if he could check under his hood, since he was having engine problems. PO Adames responded, “No, stay in the car.” § 87(2)(b) replied, “Officer please, I need to check under my hood.” PO Adames replied, “Shut the fuck up. Stay in the car.” PO Adames returned to his vehicle, where he wrote § 87(2)(b) two moving violation summonses.

PO Adames’s testimony (Board Review 2) was as follows. PO Adames observed § 87(2)(b) go against the steady red arrow and make a right turn onto 3rd Avenue. § 87(2)(b)’s vehicle failed to yield to the pedestrians in the crosswalk. PO Adames activated his emergency lights and § 87(2)(b) complied and pulled over. PO Adames approached § 87(2)(b)’s vehicle, who alleged he was having engine trouble. PO Adames did not believe § 87(2)(b) given he did not observe any external signs of engine trouble, such as smoke, sputtering, or leaking fluid. § 87(2)(b) never requested if he could check under his hood. PO Adames stated that during a typical vehicle stop he would request the motorist to remain in the vehicle for his safety and theirs. PO Adames

denied telling § 87(2)(b) to, “Shut the fuck up. Stay in the car.” PO Adames requested § 87(2)(b)’s license and registration, which § 87(2)(b) provided. PO Adames returned to his vehicle, where he wrote two moving violation summonses for § 87(2)(b). PO Adames denied using any profanity during the course of the interaction.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)’s first CCRB complaint (Board Review 3).
- PO Adames has been a member of the NYPD for three years. This is PO Adames’s first CCRB complaint (Board Review 4).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation, § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On November 29, 2017, a request was sent to the New York City’s Comptroller’s Office for any Notice of Claim filed by § 87(2)(b). The request will be added to the case file upon its receipt.

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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